

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.				1. REQUISITION NUMBER		PAGE 1 OF	
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER	
6. SOLICITATION ISSUE DATE		7. FOR SOLICITATION INFORMATION CALL:		a. NAME		b. TELEPHONE NUMBER (No collect calls)	
8. OFFER DUE DATE/ LOCAL TIME		9. ISSUED BY		CODE		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: _____	
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO		CODE		16. ADMINISTERED BY		CODE	
17a. CONTRACTOR/ OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY	
CODE		17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT	
23. UNIT PRICE		24. AMOUNT		25. ACCOUNTING AND APPROPRIATION DATA			
26. TOTAL AWARD AMOUNT (For Government Use Only)		27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED		27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED			
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐		29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: ☐		30a. SIGNATURE OF OFFEROR/CONTRACTOR			
31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)	
31c. DATE SIGNED		31c. DATE SIGNED		31c. DATE SIGNED			

Solicitation/Contract Form Continuation

Instrument Name: Professional Marketing Training FY26

Product Service Code : U099

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Product Service Description: Marketing Professional Education Product Service Code: U099 North American Industry Classification System (NAICS): 611430 Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

Requirements

The contractor shall provide all personnel and services necessary to perform in accordance with (IAW) the terms and conditions of the contract and consistently with the established standards in this PWS and contract.

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Place of Performance: TBD. Training Location should be within 5 miles of the AEMO HQ in Chicago, IL. At a facility provided by the Contractor, at no cost to the government. Please coordinate with Point of Contact: Ms. Keri Stack at keri.stack@westpoint.edu DoDAAC: W16XYA CountryCode: USA W1FB US MILITARY ACADEMY USCC S4, WASHINGTON HALL ROOM 4116 WEST POINT, NY 10996-1595 UNITED STATES
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Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Period From 01 Jun 2026 to 31 Dec 2026 Quantity 1 Each Address and POC Place of Performance DoDAAC: W16XYA CountryCode: USA W1FB US MILITARY ACADEMY USCC S4, WASHINGTON HALL ROOM 4116 WEST POINT, NY 10996-1595 UNITED STATES Period of Performance From 01 Jun 2026 To 31 May 2027
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Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02		
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)	2026-03		

52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026- O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026- O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026- O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026- O0038)	2026-02
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026- O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02

52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.223-7008	Prohibition of Hexavalent	2023-01		

Chromium.

252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.246-7008	Sources of Electronic Parts.	2023-01
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-14	Limitations on Subcontracting. (Deviation 2026-O0038)	2026-02		

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-14	Limitations on Subcontracting (DEVIATION 2021-O0008)	2026-02	Deviation 2021- O0008	2023-02
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LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without

regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry

Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05
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Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
15095 Technical Instructor/Course Developer GS-9 _____	 _____
 _____	 _____
 _____	 _____
 _____	 _____
 _____	 _____
 _____	 _____
 _____	 _____

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	<u>W911SD</u>
Admin DoDAAC	<u>W911SD</u>
Inspect By DoDAAC	<u>W16XYA</u>
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	<u>W16XYA</u>
	<u>W16XYA</u>

Service Acceptor (DoDAAC)	
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Ms. Keri Stack at keri.stack@westpoint.edu

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.204-91	Contractor Identification. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	2026-02	Deviation 2025-O0003	2025-03

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.225-7015	Restriction on Acquisition of Hand or Measuring Tools.	2005-06		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		

Addressing DEI Discrimination by Federal Contractors (Apr 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
 - (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
 - (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
 - (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
 - (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
 - (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).
- (c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Two (2)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

Department of Labor Wage Determination #2015-5017 Rev 32, dated Apr 29, 2026 is incorporated into this award and is available at <http://www.sam.gov/>.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Department of Labor Wage Determination	Wage Determination		05 May 2026		1	Attachment	No
0002	20260211 - PWS Performance Work Statement	Performance Work Statement		05 May 2026			Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-1	Instructions to Offerors- Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7031	Secondary Arab Boycott of Israel .	2005-06		
252.225-7050	Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism.	2022-12		

252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	2019-12		

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of 2021-05
Covered Defense
Telecommunications Equipment
or Services-Representation.

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense

Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

Instructions to Offerors.

All interested vendors in the Professional Marketing Training FY26, W911SD26QA081, shall submit a Capability Statement in how task(s) will be completed in the PWS with the quote by closing date listed on solicitation in Block 8.

Questions shall be submitted by 11 May 2026 at 12pm to Contract Specialist, Jarrod Bowsky, at jarrod.bowsky.civ@army.mil.

*** END OF NARRATIVE ***

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Point of Contact: KERI STACK 8459383599

Addendum to Evaluation - Commercial Product and Commercial Services

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

ADDENDUM TO FAR 52.212-2

EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

Evaluation Factors for Award

a. Basis for Contract Award. This is a Lowest Price Technically Acceptable (LPTA) source selection conducted in accordance with Federal Acquisition Regulation (FAR) 12.203, Evaluation of quotations or offers, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS), and the Army Federal Acquisition Regulation Supplement (AFARS). The Government will select the best overall proposal, based upon an integrated assessment of Technical, Past Performance, and Price Factors. Contract will be awarded to the contractor who is deemed responsible in accordance with the FAR, as supplemented, whose quote conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by 52.212-2 of this solicitation and is judged by an overall assessment of the evaluation factors to represent the most advantageous to the Government. As part of making the assessment, an evaluation will be performed determining whether the proposal meets or exceeds the minimum requirements at an associated price and provides the Lowest Price Technically Acceptable to the Government. The LPTA process does not permit tradeoffs among price and non- price factors (see FAR 15.101-2).

b. Award for All of the Work. The Government intends to award one (1) contract as a result of this solicitation. Quotes received for less than the stated number of items listed in the Price Schedule will be considered ineligible for award. As set forth in FAR 52.212-1(g), the Government intends to evaluate quotes and award a contract without discussions with offerors. Therefore, the contractor initial quote should contain the offerors best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

c. Evaluation Criteria. Evaluation criteria consist of factors. The quotes will be evaluated under three (3) evaluation factors: Technical, Past Performance, and Price.

Factor 1 - Technical Factor. The Technical Factor will receive one of the ratings defined below.

Table 1. Technical Acceptable/Unacceptable

Ratings

Rating	Description
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Acceptable Quote clearly meets the minimum requirements of the solicitation.

Unacceptable Quote does not clearly meet the minimum requirements of the solicitation.

To receive an acceptable rating, the technical factor submissions must demonstrate:

(1) Experience in same or similar magnitude and complexity outlined in the PWS. Demonstrate ten (10) years of professional experience in accordance with PWS section 1.10.

(2) Ability to obtain, maintain the equipment and personnel to adequately support the effort outlined in PWS.

Factor 2 - Past Performance. The Past Performance Factor will receive one of the ratings defined below.

Table 2. Past Performance Evaluation Ratings

Rating	Description
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Acceptable	Based on the contractor performance record, the Government has a reasonable expectation that the contractor will successfully perform the required effort, or the contractor performance record is unknown.
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Unacceptable	Based on the contractor performance record, the Government has no reasonable expectation that the contractor will be able to successfully perform the required effort.
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To receive an acceptable rating, the Past Performance submissions must show evidence of successfully performing work same or similar to the work outlined in the PWS or meet the criteria for "unknown" record of past performance. Contractors without a record of relevant past performance, the contractor may not be evaluated favorably or unfavorably on past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable."

Past Performance must be both recent and relevant. To be recent, the effort must be ongoing or must have been performed during the past three (3) years from the date of issuance of this solicitation. To be relevant, the effort must be similar in nature of work, size, and complexity.

Factor 3 - Price. Will not be scored or rated. Evaluation of price will be performed on quotations that have been evaluated and determined to be Acceptable for both Factor 1 and Factor 2. Price will not be evaluated on those responses found to be Unacceptable in either Factor 1 or Factor 2. The Government will determine whether prices are reasonable, complete and balanced. However, unreasonably high, unbalanced, inaccurate or incomplete price quotes may be the grounds for eliminating a proposal from competition.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-90	Offeror Identification. (Deviation 2026-00038)	2026-02		

Offeror Identification (Feb 2026) (Deviation 2026-00038)

If the Offeror will not have an active Federal Government contracts registration in the System

for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) Definitions. As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) Unique entity identifier (UEI).

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) Taxpayer identification. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____

TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located outside the United States and its outlying areas and its country is not a	

member of NATO or a sponsored nation Contact the NATO Support and Procurement Agency (NSPA) (<https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner	_____	_____
Highest-level owner	_____	_____
Predecessor*	_____	_____

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06
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Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting

the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of provision)

52.252-5	Authorized Deviations in Provisions.	2020-11
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Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter Two (2)) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

PERFORMANCE WORK STATEMENT (PWS)
(Includes associated Performance Requirements Summary (PRS))

AEMO Professional Education Training Program for AEMO
Contract Award – TBD
Period of Performance – NET 21 AUG 2026

Part 1
General Information

1. General: This is a non-personal service(s) contract under which the personnel rendering the service(s) are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

1.1 Description of Services/Introduction: This is a non-personal service(s) contract to provide professional educational training on the latest practices and techniques for marketing professionals. The contractor shall provide all personnel and services necessary to perform in accordance with (IAW) the terms and conditions of the contract and consistently with the established standards in this PWS and contract. The contracting office must award this contract TBD in order to provide contracting officer with sufficient time to work with the contractor in developing the syllabus and coordinating training, and to provide the contractor with sufficient lead time to reserve facilities and ensure faculty can deconflict their teaching schedules to be available for the execution of this contract.

1.2 Background: Army Enterprise Marketing Officers (FA58s) provide marketing analysis and directive for the United States Army, on behalf of the ASA M&RA. In order to maintain proficiency in the skills required to perform this mission, DA PAM 600-3 Chapter 3 states that FA58 officers "are offered the opportunity to pursue additional training, executive education courses, and practitioner certifications directly related to the field of marketing. These courses will typically be offered by leading civilian educational institutions either in residence or online and will give officers an in-depth understanding of relevant marketing roles. These courses, conferences, and certification opportunities also allow an officer to pursue specialization and expertise within the field of marketing and behavioral economics." Having previously conducted a curated period of instruction specific to AEMO, its personnel, systems, challenges, and objectives, it is imperative that AEMO continues to receive educational training which builds on previous periods of instruction and enables future success.

1.3 Scope: The Contractor shall provide non-personal service(s). The Contractor shall provide all personnel, equipment, supplies, facilities, tools, materials, supervision, and other items necessary to perform services as described in the PWS and associated contract documents, except for those items specified in Part 3 Government Property and Services. The Contractor shall perform to the standards and acceptable quality levels identified in this PWS and associated contract documents.

1.4 Objectives: The objective of this contract is to build on the educational training that AEMO personnel received during their 2024 and 2025 training sessions. The first contract established a baseline understanding of current techniques and marketing frameworks to enable success, and the second session built on the first, providing leaders at AEMO with specific tools they could take back to the office that same day and begin incorporating. This year's program must continue the same trend as 2025's training. AEMO has specific training objectives they must meet, and we require qualified and credentialed faculty to teach those techniques. This year's program must also provide updates to the techniques learned last year to ensure that all personnel at the AEMO office are prepared to excel during this period of growth and transition.

1.5 General Information:

1.5.1 Quality Control Plan (QCP): The Contractor shall develop and maintain a QCP to ensure services are performed in accordance with (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is the means by which it assures that the work provided complies with the requirements of the contract.

The Contractor's Proposed QCP shall be submitted to the Contracting Officer (KO) through the Contracting Officer's Representative (COR) for review within 10 days after date of contract award and within 5 days of any proposed changes to the COR and KO.

The Government will review and either notify the Contractor in writing of acceptance of the plan or return their comments to the Contractor within 10 days. If the Government has provided comments, the Contractor shall then have 10 days to submit a Final QCP. After receipt of the Final QCP, the Contractor may receive the Contracting Officer's acceptance in writing. Any proposed changes to the accepted QCP are required to be resubmitted for acceptance by the Contracting Officer no later than 10 days prior to the anticipated change and before implementation by the Contractor. The timeline noted above will apply for review and acceptance for proposed changes. At a minimum, the QCP must include and answer the following to be acceptable:

(a) A chart showing the organizational structure and lines of authority, the names, qualifications, duties, responsibilities, and classification of each member of the Contractor's Quality Control Team;

(b) How the Contractor will monitor work to ensure performance complies with all deliverables (etc. timelines, deadlines, and goals);

(c) How the Contractor will monitor work to ensure performance complies with all specifications and requirements of the contract, including the contract's clauses;

(d) How the Contractor will monitor and ensure staff qualifications remain current and valid including Department of Defense (DoD) Contractor Personnel Office (DOCPER) processes/approvals throughout contract performance;

(e) How the Contractor will ensure all keys issued will remain controlled items (Paragraph 1.7 Key Control);

(f) How the Contractor will inventory and track maintenance of all Government Provided Equipment / Materials;

(g) How the Contractor will identify, investigate, and correct any non-conforming performance and prevent similar deficiencies in the future; and

(h) How the Contractor will file and save all Quality Control related documents for the life of the contract plus 5 years.

1.5.1.1 An Analysis of Quality Control and Timeliness of Submittals (i.e. deliverables) shall be provided to the COR within 30 days upon completion of each option period or Task Order.

1.5.1.2 The Contractor shall inform the COR of issues or potential issues that might affect the performance within 24 clock hours of identifying those issues. Verbal reports shall be followed up by written reports within 10 days. (Deliverable A.001)

1.5.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the acceptable quality levels (performance thresholds).

1.5.3 Recognized Holidays: The following provides information on recognized holidays for the purpose of the PWS. If submittal of any documentation (e.g. deliverables, submittals, etc.) deadlines fall on a holiday, the closest work day prior to the holiday will apply as the deadline for submittal.

1.5.3.1 U.S. Holidays: Work shall not be performed on U.S. federally recognized holidays occurring during the normal workweek unless otherwise directed by the Contracting Officer. When a U.S. holiday occurs on a Saturday or a Sunday, the holiday is observed on the preceding Friday or following Monday, respectively.

New Year's Day January 1st
Presidents Day 3rd Monday in February
Juneteenth June 19th
Labor Day 1st Monday in September
Veteran's Day November 11th
Christmas Day December 25th

M. L. King Memorial Day 3rd Monday in Jan
Memorial Day last Monday in May
Independence Day July 4th
Columbus Day 2nd Monday in October
Thanksgiving Day 4th Thursday in November

1.5.3.2 Host Nation Holidays: RESERVED

1.5.4 Operating Hours: The Government facility office hours, facility operating hours, and the Contractor support hour requirements often coincide, however, they may differ. Please refer to the following.

1.5.4.1 Government Facility Office Hours: The Government facility office hours are 0800 to 1700, Monday through Friday except U.S. Holidays identified in paragraph 1.5.3.1 above or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings.

1.5.4.2 Government Facility Operating Hours: The Government facility operating hours occur between the hours of 0800 to 1700, Monday through Friday. The Government facility is not open for operations during the recognized U.S. Holidays identified in paragraph 1.6.3.1 above. The Government facility may close due to local or national emergencies, administrative closings, or similar Government directed facility closings and will be communicated by the Contracting Officer to the Contractor.

1.5.4.3 Contractor Support Hours: The Contractor shall provide support between the hours of 0800 to 1700 on the days identified for training. The Contractor shall maintain an adequate workforce at all times, for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce is essential.

1.5.4.3.1 Contractor Work Plan: RESERVED

1.5.5 Training Holidays: RESERVED

1.5.6 Place of Performance: The work to be performed under this contract will be performed on facilities provided by the Contractor, at no cost to the government.

1.6 Security Requirements: The following information is provided on security related matters.

1.6.1 Security Program: RESERVED

1.6.2 Personnel Security Clearance Requirements: RESERVED

1.6.3 Installation Access: RESERVED

1.6.3.1 Installation Pass Log: RESERVED

1.6.3.2 Individual Termination or Expiration of Employment: RESERVED

1.6.3.3 Contract Termination or Cancellation: RESERVED

1.6.3.4 Common Access Cards (CAC) and CAC Log: RESERVED

1.6.4 Background Checks: Contractor-assigned personnel will be required to submit to an Army-directed background investigation before being provided with access to data of a sensitive or PII nature. Contractor personnel shall comply with all applicable security and safety regulations, guidance, and procedures, including local, referenced in this PWS and in effect at the work sites. All personnel must meet requirements IAW DODD 8570. This is not anticipated for the scope of this contract.

1.6.4.1 U.S. Citizen: Contractors that work with or teach youth under the age of 18 years are subject to U.S background checks. The Requiring Activity Manager will determine the extent of background checks required. The Contractor employee may begin performance of the contract after receiving a favorable local background check. The Contractor agrees to replace the employee should results of the background check, if required, be unfavorable as determined by the Requiring Activity Manager. The Contractor's replacement of the employee with the unfavorable background check shall be within a timeframe provided by the Requiring Activity Manager. The Contractor shall also replace employees whose background check, during their tenure of employment, renders them with an unfavorable local or stateside background check, as determined by the Requiring Activity Manager. The Contractor shall forward a copy to the Contracting Officer via the COR and the Requiring Activity Manager of each favorable background check within 10 days of receipt by the Contractor, identifying such with the appropriate contract number (Deliverable A.002). The Contractor shall forward a copy to the Contracting Officer via the COR and the Requiring Activity Manager of each unfavorable background check within 10 days of receipt by the Contractor, identifying such with the appropriate contract number (Deliverable A.003). When the Government awards a non-personal services contract directly to an individual, the failure of the individual to provide a favorable background check would be grounds for termination.

1.6.4.2 Local Nationals and Third Country Nationals: RESERVED

1.6.5 Physical Security: The Contractor shall safeguard all Government equipment, information, and property provided for Contractor use.

1.6.6 Operations Security (OPSEC) Requirements: Contractor personnel shall adhere to facility security policies and restrictions. The Contractor shall immediately report suspicious activities to security personnel.

1.7 Key Control: RESERVED

1.8 Post Award Conference/Periodic Progress Meetings: The Contractor shall attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.8.1 The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The Contract Manager or designated representative shall attend meetings as requested by the Government. Meeting attendees shall at times include Contractor managerial, supervisory, and other personnel knowledgeable of the subject matter. Meetings may start or end outside of regular duty hours.

1.9 Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. As determined by the Contracting Officer, a COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.10 Key Personnel: The Contractor shall provide a Primary and Alternate Program/Contract Manager who shall be responsible for the scheduling and execution of the training, as well as ensuring facilities and support are provided in accordance with further specifications. The Contract Manager and Alternate Contract Manager shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contract Manager or Alternate Contract Manager shall be available between 0800-1700 on the days identified for training. In addition, the Contractor shall provide a minimum of one instructor per topic (discussed below) from the faculty of the University or College which wins the contract in order to provide the educational training. Qualifications for all key personnel are listed below:

a. Contract Manager and Alternate Contract Manager: The Contract Manager and Alternate Contract Manager must each have a minimum of 10 years planning, scheduling, and managing graduate school executive education programs. They must also have previous experience contracting these types of programs for the Army. Previous experience with providing training for AEMO is preferred.

b. Instructors: The funding source for this contract is MDEP TAPE. These funds are specifically earmarked for educational training, and provided to FA58 in order to meet the requirement for functional area officers to receive continuing executive education, helping our officers to keep pace with industry best practices. Because of the type of funds used, and the purpose of the contract, it is therefore required that all instructors be instructors employed by

the graduate school which wins this contract. Each instructor must have a minimum of 10 years teaching and/or relevant professional leadership experience, and must demonstrate subject-matter expertise through published or publicly disseminated work related to the course, including books, peer-reviewed journals, practitioner outlets, or other recognized media. Instructors must also have practical experience in these fields outside the classroom such as a personal business related to the material they will teach, affiliation with an organization which does work related to the topic they will teach, or other similar affiliations. See below for specific instructor requirements.

c. Systems Administrator: **RESERVED**

d. Special Qualifications: The following topics have been identified by the training audience as the subjects they want the classes to address in fulfillment of this contract.

1. Selling the Army's Value Proposition – This session should focus on storytelling as a way to communicate the Army's value proposition, and should provide our officers with analytical tools for thinking about how to have more meaningful conversations with prospective recruits. The instructor must have industry experience with strategic communication and executive coaching, and must have published on communication-related topics such as consensus-building, influence, reframing / rephrasing, and persuasion.
2. Strategic AI Use – This session should use a mix of instruction and classroom exercises to demonstrate the effectiveness of predictive analytics as a tool for humans and AI to collaborate on crafting strategy. The instructor must be a leading AI scholar with an extensive publishing background in strategic AI applications, and must actively advise private firms and public organizations.
3. Overcoming Resistance to AI – This session should arm our officers with the tools to have meaningful conversations with people who are resistant to the implementation of AI systems in their work streams. This should be accomplished through a combination of development of implementable strategies, and instruction focused on understanding why people are resistant to some ideas, and how to overcome that resistance. This instructor should be an expert in the theoretical aspect of overcoming organizational resistance, with related publications, and must be actively advising organizations on change resistance strategies outside the classroom.
4. The current state of AI – Since AI capabilities change so rapidly, we need an entire session dedicated entirely to the current state of the industry as a whole. Students must gain familiarity with how to implement AI systems and solutions in multiple segments of the organizations, and must learn about how to develop procedural and physical systems for governing their ethical use. The instructor must be a pre-eminent AI leader and scholar, who actively advises many organizations on AI implementation methods.
5. Communication Strategies – This session must arm our officers with the tools needed to have effective conversations INSIDE our own ranks; with peers, adjacent organizations, and Army senior leaders. This session should teach our officers tools for structuring effective internal communication, how to

cultivate a personal brand, the power of networking, how to handle resistance and negative feedback, and should provide officers with an opportunity to practice these skills. The instructor must have extensive strategic communication experience, and must be a published expert in strategic communication.

1.11 Identification of Contractor Employees: All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties must identify themselves, to include proper marking of signature blocks in correspondence, to avoid creating an impression in the minds of members of the public that they are Government officials. The Contractor shall ensure that all documents or reports, produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.12.1 Contractor workspace (staging site, on-site office, desk or work area, etc.) shall contain a sign signifying the space is occupied by Contractor employee(s) to ensure that Government employees and the public know that they are not Government employees. The proposed sign shall be submitted to the Contracting Officer via the COR for review and acceptance no later than 10 days after contract award (Deliverable A.005). Workspace sign location shall be coordinated with the COR. Contractor employees shall identify themselves by name and company affiliation when answering the telephone, presenting briefings, conducting or attending meetings, and seminars. All Contractor correspondence (written, facsimile, and email display) shall include their company name. Requirements for Contractor vehicles is addressed under Part 4 paragraph 4.4.

1.12.2 Contractor Identification Badges: Contractor personnel shall be easily identifiable through the display of badges IAW Contractor Identification (AE Reg. 27-715). For the purpose of this contract, trainers may use whatever identification is standard for their organization.

1.13 Contractor Travel: As this training is being conducted in facilities provided by the contractor, the contractor will bear all required travel expenses for the personnel who will conduct training.

1.14 Other Direct Costs (ODCs): Contractor will bear all costs related to the training including (but not limited to): licensing training materials (books, case studies, online learning systems), printouts, the use of facilities, any materials provided to the training audience for the purpose of training, and any meals (and accompanying items such as flatware, plates, napkins, cups, etc) planned in conjunction with this training program.

1.15 Data Rights: The Government has unlimited rights to all documents and materials produced under this contract. All documents and materials, to include the source codes of software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership and copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the Contractor without written permission from the Contracting Officer. All materials supplied to the

Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.16 Non-Disclosure Requirements: Performance under this contract may require the Contractor to access data and information proprietary to a Government agency, another Government Contractor, or of such nature that its dissemination or use other than as specified in this work statement would be adverse to the interests of the Government or others. The Contractor and Contractor personnel, shall not divulge or release data or information developed, or obtained under performance of this PWS, except to authorized Government personnel or upon written approval of the Contracting Officer. The Contractor shall not use, disclose, or reproduce proprietary data, which bears a restrictive legend, other than as specified in this PWS. All documentation showing individual names or other personal information shall be controlled and protected under the provisions of the Privacy Act of 1974, Public Law 93-579, 5 United States Code (U.S.C.) Section 552a.

1.17 Protection of Government and Contract Information: Per Public Use Notice of Limitations stated by Defense imagery Management operations Center and contained at www.dimoc.mil/resources/limitations/, the Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any hard copy or digital marketing tools to include its company website.

1.18 Non-Disclosure Statements: The Contractor shall provide signed non-disclosure agreements to the Government no later than 10 days prior to commencement of work under the contract (Deliverable A.006). Disclosure of information by Contractor personnel may result in removal of Contractor personnel from performance under this contract.

1.19 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCI as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI (Deliverable A.007). The Contractor's OCI Mitigation Plan will be determined to be acceptable solely at the discretion of the Contracting Officer. In the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.20 Phase In /Phase Out Period: It is the responsibility of the contractor to manage phase-in and phase-out of their own employees, as necessary, during the execution of this contract, and to continue providing training in accordance with the schedule agreed upon by the training audience and contractor, jointly.

1.21 Safety: The following provides information pertaining to Safety and Accident Prevention:

1.21.1 Safety Laws and Regulations: The Contractor shall comply with FAR 52.236-13, Accident Prevention (November 1991), the references contained therein (e.g. *U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)*) and all OSHA requirements for the safe execution of workplace activities.

The requirements under FAR 52.236-13 and specifically of the EM 385-1-1 include, but are not limited to the following:

(a) Before initiation of work at the job site, an Accident Prevention Plan, written by the Contractor for the specific work and hazards of the contract and implementing in detail the pertinent requirements of EM 385-1-1; will be reviewed for acceptance by designated Government personnel (Deliverable A.008). Specific requirements for development of the Accident Prevention Plan are found in 01.A and Appendix A of EM 385-1-1. EM 385-1-1 is available online at www.usace.army.mil.

(b) Before beginning each activity involving a type of work presenting hazards not experienced in previous project operations or where a new work crew or subcontractor is to perform work, activity hazard analysis (AHA) shall be prepared by the Contractor performing the work activity (See paragraph 01.a.09 of EM 385-1-1);

(c) The Contractor shall require subcontractors to submit their plan of operations showing methods they propose to use in accomplishing major phases of work;

(d) The Contractor shall discuss the plans in conferences convened by the Contracting Officer prior to starting work on each major phase of operation. Plans shall include all pertinent information such as layout of haul roads, access roads, storage areas, electrical distribution lines, methods of providing minimum exposure to overhead loads, and methods of access to work areas. The plan for accomplishing the initial work phase shall be submitted within fifteen (15) calendar days after award of the contract. Plans for subsequent major phases of work shall be submitted no later than fifteen (15) calendar days prior to initiation of work on each major phase; and

(e) In all areas where construction, demolition, alteration, building, or similar related activities take place, the Contractor shall have the following minimum personal protective clothing and equipment requirements in place for any person working on or visiting the site:

- (i) Short sleeve shirt;
- (ii) Long trousers;
- (iii) Steel-toed safety boots; and
- (iv) Hard hat.

1.21.1.1 In addition to other requirements for accident prevention specified in this contract, the Contractor shall comply with all Federal and State requirements governing safety and health protection on construction sites and other applicable occupational safety codes. The Contractor shall indicate its plan for compliance considering conditions of the work described by the design, technical proposal, operational activities of the Government or others in the area of the work, identification of the coordinator, and implementation of all other accident prevention provisions of this contract.

1.21.1.2 The Contractor shall complete and provide safety notifications established in state and federal requirements, and will provide documented proof to the Contracting Officer via the COR, no later than 10 days after the award of this contract, that such notifications were made (Deliverable A.009).

1.22 Environmental Compliance: The following provides information on Environmental Compliance.

1.22.1 Environmental Compliance Plan and Program: Contractor bears full responsibility for all activities, and will comply with state and federal guidelines for any activities that require environmental compliance such as the safe collection and disposal of waste.

1.23 Required Training: The following provides information on training requirements.

1.23.1 Anti-Terrorism (AT) Level I Training: All Contractor employees, including subcontractor employees, who are employed under the contract, shall complete AT Level I Training within 10 days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies, or 10 days after employment of new personnel (Deliverable A.010). Contractor personnel travelling overseas shall complete area of responsibility (AOR) specific AT awareness training for U.S. based Contractor employees and associated subcontractor employees. The Contractor shall submit certificates of completion for each affected Contractor employee and subcontractor employee to the COR (or to the Contracting Officer, if a COR is not assigned) within 10 days after completion of this training by all employees and subcontractor personnel (Deliverable A.011). AT Level I awareness training is available at <https://jkodirect.jten.mil>.

If training cannot be conducted on the website, the Contractor shall coordinate with the COR who will contact the local AT Officer at their assigned location for classroom training. Contractor personnel completing training in the classroom will receive a certificate or the training attendance roster signed by the AT Officer. Verification of the training shall be provided to the COR within 10 days after completion of the training (Deliverable A.012).

1.23.2 OPSEC Training: All Contractor employees, including subcontractors, shall complete Level I OPSEC training within 10 days of employment under this contract (Deliverable A.013). Verification of the training shall be provided to the COR within 10 days after completion of the training (Deliverable A.014). OPSEC Level I training is available at <http://www.cdse.edu/catalog/elearning/GS130.html>.

If training cannot be conducted on the website, the Contractor shall coordinate with the COR, who will contact the local OPSEC Officer at their assigned location for classroom training. Contractor personnel completing training in the classroom will receive a certificate or the training attendance roster signed by the OPSEC Officer. Verification of the training shall be provided to the COR within 10 days after completion of the training (Deliverable A.015).

1.23.3 iWATCH Training: The Contractor and all associated subcontractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 10 days after the contract is awarded (Deliverable A.016) and within 10 days after new employees commence contract performance, with the results reported to the COR within 10 days after the contract is awarded and within 10 days after new employees commence contract performance. Verification of the training shall be provided to the COR within 10 days after completion of the training (Deliverable A.017). Training slides can be found on the Army OneSource website:

<http://www.myarmyonesource.com/familyprogramsandservices/iwatchprogram/default.aspx>

1.23.4 Information Assurance (IA) Training

1.23.4.1 All Contractor employees, including subcontractors, requiring access to Government information systems shall complete the DoD IA Cyber Awareness Training within 10 days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies, or 10 days after employment of new personnel (Deliverable A.018). Verification of the training shall be provided to the COR within 10 days after completion of the training (Deliverable A.019).

1.23.4.2 All Contractor employees, including subcontractors, working information technology (IT)/IA functions shall comply with DoD and Army training requirements per Information Assurance Training Certification and Workforce Management DoD Directive (DoDD) 8570.01, Information Assurance Workforce Improvement Program DoD 8570.01-M, and Information Assurance AR 25-2 within thirty (30) calendar days of employment. Training is available at <https://ia.signal.army.mil/DoDIAA/default.asp>.

1.23.4.3 RESERVED

1.23.5 Personally Identifiable Information (PII): Contractor employees, including subcontractors, performing services under this contract with access to PII and Government information shall complete "Identifying and Safeguarding PII" within 30 calendar days of employment (Deliverable A.020). Training is available at <http://iatraining.disa.mil/eta/piiv2/launchPage.html>

1.24 Authorization to Perform Services in Germany: RESERVED

1.25 Notice to Proceed: The notice to proceed will be provided as indicated below.

- ☐ *The effective date of contract will constitute the date of notice to proceed*
- ☐ *A notice to proceed letter will be issued*
- ☐ *The date of the letter transmitting the contract constitutes the date of the notice to proceed*

1.26 Electromagnetic Compatibility Directive: RESERVED

1.27 Government Property and Services: RESERVED

1.28 Conventional Forces Europe (CFE) Treaty Verification Inspection: RESERVED

PART 2 DEFINITIONS & ACRONYMS

2. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired Property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

Government-furnished Property – As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance,

overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract

Government Property - means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document, and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas

necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Work Day - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AE	Army in Europe
AFARS	Army Federal Acquisition Regulation Supplement
AHA	Activity Hazard Analysis
AOR	Area of Responsibility
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CCE	Contracting Center of Excellence
CFE	Conventional Forces Europe
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense
FAR	Federal Acquisition Regulation
FRG	Federal Republic of Germany
GFP	Government Furnished Property
HLO	High Level Objective
HIPAA	Health Insurance Portability and Accountability Act of 1996
IA	Information Awareness
IAC	Installation Access Control
IACO	Installation Access Control Office
ID	Identification
IGCE	Independent Government Cost Estimate

IT	Information Technology
JTR	Joint Travel Regulation
JPAS	Joint Personnel Adjudication System
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OPSEC	Operations Security
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RA	Requiring Activity
RCO	Regional Contracting Office
SIGE	Safety and Health Protection Plan
TE	Technical Exhibit
USAG	United States Army Garrison
USAREUR	United States Army Europe
UOM	Unit of Measure

PART 3
GOVERNMENT PROPERTY (GP) AND SERVICES

3. Government Property and Services: Contractor shall provide all personnel, services, facilities, utilities, materials, and training in the execution of this contract.

3.1 Services: RESERVED

3.2 Facilities: RESERVED

3.3 Utilities: The Contractor shall operate under conditions that preclude the waste of utilities, which include turning off the water faucets or valves, light switches, etc. after using the required amount to accomplish tasks requiring the use of utilities.

3.4 Equipment: RESERVED

3.5 Special Tooling and Test Equipment: RESERVED

3.6 Materials: RESERVED

3.7 Training: Contractor is responsible for accessing and completing all training identified in Part 1.

3.8 Common Access Cards (CAC): RESERVED

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Property and Services

4.1 General: The Contractor shall furnish all personnel, equipment, supplies, facilities, tools, materials, supervision, and other items necessary to perform services as described in the PWS and associated contract documents, except for those items specified in Part 3 Government Property and Services.

4.2 Secret Facility Clearance: RESERVED

4.3 Materials: The Contractor shall provide *training materials including (but not limited to): software licenses, case studies, intellectual material, training documents, printed or electronic articles, and anything else required to execute the totality of this training program.*

4.4 Vehicles and Equipment: The Contractor shall provide any equipment required to execute training beyond that covered in Part 4.3 above, as required.

4.5 Background Checks): The Contractor shall provide Background Checks in accordance with this PWS and as determined by the Government.

PART 5 SPECIFIC TASKS

5.1 Basic Services: The objective of this contract is to build on the educational training that AEMO personnel received during their 2024 and 2025 training sessions. The first contract established a baseline understanding of current techniques and marketing frameworks to enable success, and the second session built on the first, providing leaders at AEMO with specific tools they could take back to the office that same day and begin incorporating. This year's program must continue the same trend as 2025's training. AEMO has specific training objectives they must meet, and we require qualified and credentialed faculty to teach those techniques. This year's program must also provide updates to the techniques learned last year to ensure that all personnel at the AEMO office are prepared to excel during this period of growth and transition.

5.2 Tasks: Tasks consist of the following:

5.2.1 Build on FY25 Contract Program of Instruction

5.2.1.1 Connection to ongoing development: Using existing knowledge of AEMO personnel, organizational structure, systems, goals, and position within the broader DoW ecosystem, as well as all training material covered during the previous year, Contractor must assess the effectiveness of changes at AEMO directly related to previous training and factor this growth into the training provided during this year's contract.

(a) STD: Contractor shall possess all knowledge stated above in order to build and deliver lessons. If Contractor does not possess this knowledge, they must obtain it prior to the start of training, at Contractor's own expense. The value of all above knowledge is estimated at \$800,000, equivalent to the sum total of all previously conducted leader training, combined with the previous two years of contract value.

AQL: 100% Compliant. (Deliverable A.021)

5.2.2 Deliver 5 Days of Enterprise-level Marketing Training

5.2.2.1 Marketing Training: Contractor shall provide a curriculum of instruction over the course of 5 total training days (scheduled between Contractor and training audience) for 30 trainees per session, to address the subjects covered in 1.10.d. of this document.

(a) STD: Contractor shall conduct lesson prep and deliver training at the dates, times, and locations agreed upon between Contractor and training audience for the execution of this contract. Contractor and training audience will agree on training topics prior to the commencement of training.

AQL: 5 total days of training for 30 trainees per session, with all identified topics covered (Deliverable A.022)

5.2.3 Provide Training Materials

5.2.3.1 Digital and Physical Materials: At or before the time of training, the Contractor shall provide trainees with access to all physical and digital training materials required to facilitate the execution of training.

(a) STD: The Contractor will provide trainees with access to an online system (Canvas, or similar) where all digital training materials will reside. The Contractor will also populate these systems with all training materials so that trainees can prepare for training sessions, and have access to these materials after the training is complete for at least 6 months.

AQL: 100% compliant. (Deliverable A.023)

5.2.4 Instructors and Facilities

5.2.4.1 Synchronization: It is the responsibility of the Contractor to schedule both facility and trainer availability to support these training sessions, in conjunction with training audience availability. Furthermore, Contractor must be able to conduct training at a location within 5 miles of the AEMO HQ, 11 West Quincy Court, Suite 310, Chicago, IL in order to reduce travel time and time away from conducting regular business, at no cost to the Government.

(a) STD: Trainers and training facilities available on the dates and times agreed upon between the Contractor and the training audience for the purpose of training. Training location within 5 miles of AEMO HQ.

AQL: 100% compliance. (Deliverable A.024)

5.2.5 Meals and Refreshments

5.2.5.1 Sustainment: On training days, it is the responsibility of the Contractor to provide two meals (breakfast and lunch), along with refreshments (cold and hot beverages, snacks) during breaks in training classes.

(a) STD: The contractor provides sufficient food and beverages for all trainees during all training sessions.

AQL: 100% compliance. (Deliverable A.025)

5.3 Service Contract Reporting

5.3.1 System for Award Management (SAM) Service Contract Report (SCR): The Contractor shall report ALL Contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for the US Army via a secure data collection site. The Contractor is required to completely fill in all required data fields through the following web address: www.sam.gov. Reporting inputs will be for the labor executed during the period of performance during each Government FY, which runs from October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk by clicking "View Assistance for SAM.gov" which is located at the top of the SAM.gov website. From there, you can select "Contact Our Service Desk" which

will allow you to contact SAM.gov directly. If contract period of performance ends prior to September 30, the Contractor has 30 calendar days from end date of the contract to complete the SAM SCR requirement.

Steps for Submitting a Service Contract Report (SCR)

1. Go to www.sam.gov and log in.
2. Select Entity Registrations and then select Service Contract Reporting.
3. SAM displays your entities which have service contracts and meet the reporting criteria. Select View by entity to see the service contracts for each entity.
4. Next, select Add for the service contract against which you want to create a Service Contract Report. Each service contract which meets the FAR Subpart 4.1703 reporting thresholds is displayed.
5. You will be taken to the Complete Service Contract Report page. SAM displays the contract details and allows you to report. You are required to enter the following information:
 - **Total Amount Invoiced:** Total dollar amount invoiced for services performed during the previous Government fiscal year under the contract (this amount should include the prime and any subcontract amount).
 - **Prime Contractor Hours Expended:** Prime contractor direct labor hours expended on the services performed during the previous Government fiscal year. The amount you enter is automatically divided by 2,080 hours to calculate a Full Time Employee (FTE) equivalent, displayed under the Prime Contractor Hours Expended as Prime Contractor FTEs.
6. Report any required Tier 1 subcontractor information by selecting the Add Tier 1 Subcontract Information button.
7. When you are ready to submit the report, select Submit. This saves your report and returns you to the Select Service Contract page where you can create other SCRs or edit an existing SCR.

Steps for Editing a Submitted Report

1. Follow steps 1-4 above. Any previously submitted SCR will have a View/Edit button instead of an Add button.
2. Select View/Edit. You will be able to view the current SCR, edit available fields, and resubmit the record. You can also delete previously entered information altogether.

STD: All information provided by the Contractor shall be accurate, complete, and not exceed suspense dates noted in corresponding paragraph above.

AQL: 100% Compliant. (Deliverable A.026)

PART 6 APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

- 6.1.1 Department Of Defense Contract Security Classification Specification (DD Form 254)
- 6.1.2 Department of Defense Security Agreement (DD Form 441)
- 6.1.3 National Industrial Security Program Operating Manual (DoD 5220.22-M)
- 6.1.4 Installation Access Control (AE Reg 190-16)
- 6.1.5 The Army Physical Security Program (AR 190-13)
- 6.1.6 Contractor Identification (AE Reg 27-715)
- 6.1.7 U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)
- 6.1.8 Information Assurance Workforce Improvement Program (DoD 8570-M)
- 6.1.9 Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 6.1.10 Information Assurance (AR 25-2)
- 6.1.11 Electromagnetic Compatibility Directive (2004/108/EC)
- 6.1.12 Policies and Procedures for Property Accountability (AR 735-5)

PART 7
ATTACHMENT AND TECHNICAL EXHIBIT LISTING

7. Attachment and Technical Exhibit List

7.1 Technical Exhibit A – Performance Requirements Summary

7.2 Technical Exhibit B – Deliverables Schedule

7.3 Attachment 1 – Estimated Workload Data

TECHNICAL EXHIBIT A
Performance Requirements Summary (PRS)

PERFORMANCE OBJECTIVE	STANDARD	PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)	METHOD OF SURVEILLANCE
PRS#1 – PWS para 5.2.1 <i>The Contractor shall build on the FY24 and FY25 Contracted Programs of Instruction</i>	Using existing knowledge of AEMO personnel, organizational structure, systems, goals, and position within the broader DoD ecosystem, as well as all training material covered during the previous year, Contractor must assess the effectiveness of changes at AEMO directly related to previous training and factor this growth into the training provided during this year's contract.	100% compliant	<i>Ongoing discussions with Government representative during preparation to deliver training, to ensure that contractor possesses knowledge required to meet this performance objective</i>
PRS#2 - PWS para 5.2.2 <i>The Contractor shall provide 5 days of enterprise-level marketing training</i>	Contractor shall conduct lesson prep and deliver training at the dates, times, and locations agreed upon between Contractor and training audience for the execution of this contract. Sessions will address the specific topics and details discussed in 1.10.d of this document.	5 total days of training, for 30 trainees per session, with all identified topics and sub-topics covered	<i>100% inspection</i>
PRS#3 - PWS para 5.2.3 The contractor shall provide training materials	The Contractor will provide trainees with access to an online system (Canvas, or similar) where all digital training materials will reside. The Contractor will also populate these systems with all training materials so that trainees can prepare for training sessions, and have access to these materials	100% compliant	100% inspection

	after the training is complete for at least 6 months.		
PRS#4 - PWS para 5.2.4 The contractor shall provide instructors and facilities	Trainers and training facilities available on the dates and times agreed upon between the Contractor and the training audience for the purpose of training. Contractor must be able to conduct training at a location within 5 miles of the AEMO HQ in order to reduce travel time and time away from conducting regular business, at no cost to the Government. Instructors must meet the qualifications identified in 1.10.d. of this document.	100% compliance	100% inspection
PRS#5 – PWS para 5.2.5 The contractor shall provide meals and refreshments on training days	The contractor will provide breakfast and lunch on training dates, along with refreshments (hot and cold beverages, snacks) for scheduled breaks during classes.	Two meals per trainee per training day, sufficient hot and cold beverages, and snacks, for training audience for breaks during training.	100% inspection

TECHNICAL EXHIBIT B
DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A.001 Quality Control Plan (paragraph 1.5.1.2)	Upon completion of each Task Order	One each	Email	The Contracting Officer
A.002 U.S. Citizen (paragraph 1.6.4.1)	Once within 10 days, upon completion of receiving a favorable background check	One each	Email	The Contracting Officer
A.003 U.S. Citizenship (paragraph 1.6.4.1)	Once within 10 days, upon receipt of unfavorable background check	One each	Email	The Contracting Officer
A.004 Key Personnel (paragraph 1.10)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.005 Identification of Contractor Employees (paragraph 1.12.1)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.006 Non-Disclosure Requirements (paragraph 1.18)	Once, within 10 days prior to the commencement of work	One each	Email	The Contracting Officer
A.007 Organizational Conflict of Interest (OCI) (paragraph 1.19)	Once, upon identification of conflict of interest	One each	Email	The Contracting Officer
A.008 Safety Laws and Regulations (paragraph 1.21.1.a)	Once, upon completion	One each	Email	The Contracting Officer
A.009 Safety Laws and Regulations (paragraph 1.21.1.2)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.010 Anti-Terrorism (AT) Level I Training (paragraph 1.23.1)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.011 Anti-Terrorism (AT) Level I Training (paragraph 1.23.1)	Once, upon receipt of certificates	One each	Email	The COR
A.012 Anti-Terrorism (AT) Level I Training (paragraph 1.23.1)	Once, if training cannot be completed online	One each	Email	The Contracting Officer

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A.013 OPSEC Training (paragraph 1.23.2)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.014 OPSEC Training (paragraph 1.23.2)	Once, upon receipt of certificates	One each	Email	The COR
A.015 OPSEC Training (paragraph 1.23.2)	Once, if training cannot be completed online	One each	Email	The Contracting Officer
A.016 iWatch Training (paragraph 1.23.3)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.017 iWatch Training (paragraph 1.23.3)	Once, upon receipt of certificates	One each	Email	The COR
A.018 Information Assurance (IA) Training (paragraph 1.23.4.1)	Once, within 10 days after contract award	One each	Email	The Contracting Officer
A.019 Information Assurance (IA) Training (paragraph 1.23.4.1)	Once, upon receipt of certificates	One each	Email	The COR
A.020 Personally Identifiable Information (PII) (paragraph 1.23.5)	Once, no later than 5 days after completion	One each	Email	The COR
A.021 Demonstration of existing knowledge sufficient to satisfy contract terms	Continuously, prior to the commencement of contract award and during the preparation to deliver training	N/A (Ongoing)	In person and digital discussions between contractor and Gov.	The Contracting Officer
A.022 Marketing Training	5 times, over the duration of the contract	N/A (in-person training)	In person training	Training audience
A.023 Digital and Physical Materials	As necessary	N/A	Digital / physical	Training audience
A.024 Synchronization	As necessary	N/A	N/A	N/A
A.025 Meals and refreshments	Two meals per trainee per training day, beverages and snacks for breaks during training	Per trainee	In person food and refreshment	Training audience

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A.026 Steps for Editing a Submitted Report (paragraph 5.3.1)	Once 100% compliant	Once each	Email	The Contracting Officer

**ATTACHMENT 1
ESTIMATED WORKLOAD DATA**

ITEM	NAME	ESTIMATED QUANTITY	
1	<i>AEMO personnel and operations familiarization (if not already possessed)</i>	<i>Hours</i>	<i>200</i>
2	<i>Customer (AEMO) surveys to build program-specific objectives (if not already possessed)</i>	<i>Hours</i>	<i>30</i>
3	<i>Lesson Preparation</i>	<i>Hours</i>	<i>97.5</i>
4	<i>Lesson Delivery</i>	<i>Hours</i>	<i>40</i>
5	<i>Facilities Coordination</i>	<i>Hours</i>	<i>5</i>
6	<i>Trainer Schedule Coordination</i>	<i>Hours</i>	<i>10</i>
7	<i>Facilities Setup</i>	<i>Hours</i>	<i>5</i>
9	<i>Facilities Clean up</i>	<i>Hours</i>	<i>5</i>